

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MAXIMO RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. "JOHN DOE"
Individually and in His Official Capacity, (the name
"John Doe" being fictitious, as the true name is presently
unknown),

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 23, 2021

JON L. NORINSBERG, ESQ., PLLC

By:



Jon L. Norinsberg, Esq.

Diego O. Barros, Esq.

Attorneys for Plaintiff

110 East 59th Street, Suite 3200

New York, NY 10022

Tel.: (212) 791-5396

Fax: (212) 656-1889

Index No.

Plaintiff designates
QUEENS County
as the place of trial

SUMMONS

The basis of venue is
the location where the
incident arose

Defendant(s)' Address:

The City of New York
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
MAXIMO RODRIGUEZ,

Index No.

Plaintiff,

-against-

COMPLAINTTHE CITY OF NEW YORK, P.O. "JOHN DOE"
Individually and in His Official Capacity, (the name
John Doe being fictitious, as the true name is presently
unknown),

Defendants.

-----X

Plaintiff, MAXIMO RODRIGUEZ, by his attorneys, Jon L. Norinsberg, PLLC,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION AND VENUE

2. This action is brought for violations of Mr. Rodriguez's rights under New York State common and statutory law, as well as violations of Mr. Rodriguez's constitutional rights under Federal law.

3. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

PARTIES

4. Plaintiff is a Hispanic-American male and at all relevant times was a resident of the County of Queens, in the City and State of New York.

5. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

7. At all times hereinafter mentioned, the individual named defendant, P.O. "JOHN DOE" ("P.O. Doe"), was and still is an individual employed as a police officer, detective, agent and servant and/or employee of said department and was acting under the supervision of said department and according to his official duties.

8. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

9. Each and all of the acts of defendant P.O. Doe alleged herein was done by said defendant while acting within the scope of his employment by defendant, City of New York.

10. Each and all of the acts of defendant P.O. Doe alleged herein was done by said defendant while acting in furtherance of his employment with defendant, City of New York.

FACTS

11. On December 8, 2019, at approximately 8:50 p.m., plaintiff MAXIMO RODRIGUEZ, was lawfully present at and outside the premises of 1627 Summerfield Street, Ridgewood, New York (“Premises”).

12. At the aforesaid time, plaintiff MAXIMO RODRIGUEZ and a group of his friends became involved in a confrontation with a group of individuals inside the premises’ lobby.

13. Defendant P.O. Doe investigated the confrontation and restored order. Specifically, Defendant P.O. Doe approached the grouped individuals with a hand on his firearm which he carried in a holster on his waistband, announced: **“I’m an officer”** and directed them to leave the premises.

14. In response to defendant P.O. Doe’s directive, plaintiff MAXIMO RODRIGUEZ and his friends immediately exited the premises.

15. Notwithstanding his compliance, defendant P.O. Doe followed plaintiff MAXIMO RODRIGUEZ outside and forcefully grabbed plaintiff and told him: **“You under arrest.”**

16. Thereafter, without any warning or justification, defendant P.O. Doe savagely assaulted plaintiff MAXIMO RODRIGUEZ. Specifically, defendant P.O. Doe began to assault plaintiff by repeatedly punching him in the face and consequently knocked him down to the floor. Defendant P.O. Doe furthered the assault by kicking plaintiff while he was on the floor. Defendant then picked plaintiff up from the floor and continued to punch and kick him.

17. Throughout the assault, plaintiff MAXIMO RODRIGUEZ repeatedly pleaded with defendant P.O. Doe to stop this vicious assault. Yet, plaintiff’s pleas and complaints meant

nothing to defendant P.O. Doe who continued his violent attack. Plaintiff showed defendant that he had blood on his hands after touching his face to indicate that he was injured and bleeding profusely. In response, defendant punched plaintiff's hands down and continued to assault him.

18. Defendant P.O. Doe ultimately shoved plaintiff MAXIMO RODRIGUEZ onto the ground and allowed him to leave without effectuating an arrest.

19. Throughout the duration of the assault, defendant P.O. Doe's firearm remained on display in a holster on his waistband without any obstruction.

20. More than once, Defendant P.O. Doe announced that he was acting in an official capacity on a police matter.

21. Plaintiff MAXIMO RODRIGUEZ, never assaulted or attempted to assault defendant P.O. Doe.

22. Plaintiff MAXIMO RODRIGUEZ, never resisted or attempted to resist his unlawful detention.

23. As a result of this unlawful and wholly unjustified use of force, plaintiff MAXIMO RODRIGUEZ suffered severe blunt injuries to his face causing him to be hospitalized and subsequently undergo surgery at St. Francis Hospital.

24. Specifically, plaintiff MAXIMO RODRIGUEZ' injuries included a comminuted displaced fracture of the left zygoma, orbital rim, orbital floor, maxillary sinus, maxillary bone and nasal fracture which necessitated open reduction and internal fixation of left zygomatic fractures including left orbital rim, open reduction and repair of the left orbital floor and placement of mesh, neurolysis of left infraorbital nerve, open reduction and internal rigid fixation of the left maxillary sinus and maxillary bone, reduction of the nasal fracture by manipulation and placement of a splint, left lateral orbital canthotomy and repair of canthotomy

incision. (See Ex. A Operative Report and Ex. B Photos).

25. On December 26, 2019, Plaintiff reported the assault to New York City Police Department by filing a complaint in the 104 precinct. This complaint was subsequently referred to the New York City Bureau of Internal Affairs (“IAB”) for investigation under Log No. 2019 – 45678. (See Ex. C NYPD Complaint).

26. Upon information and belief, IAB concluded that defendant P.O. Doe engaged in police action when he approached Plaintiff MAXIMO RODRIGUEZ with his hand on his gun to investigate the confrontation, identified himself as a police officer and restored order by directing plaintiff to exit the premises. Moreover, IAB concluded that Defendant P.O. Doe used excessive force within the scope of his employment while investigating the altercation and restoring order.

27. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, bodily injuries, facial deformities, permanent scarring, conscious pain and suffering and missed time from school, emotional distress, embarrassment and humiliation, out of pocket medical expenses and deprivation of his constitutional rights.

28. Plaintiff has complied with all of the conditions precedent of the bringing of this action, and have complied with all provisions of the Charter of the City of New York, and the plaintiffs have, prior to the bringing of this action and within ninety days after the injuries hereinafter described were received, duly served notice upon the Corporation Counsel and the Comptroller for the City of New York of his intention to sue upon the claim set forth. More than thirty days have elapsed since the presentation of the Notice of Claim, and that said claim remains unadjusted and said Comptroller has failed and/or refused to make any adjustment thereof.

29. On or about March 6, 2020, a Notice of Claim was timely served upon defendant,

CITY in accordance with General Municipal Law §50-e. (See Ex. D Notice of Claim).

30. That more than 30 days have passed since the filing of the Notice of Claim and defendant, CITY has failed to adjust the claim.

31. A statutory hearing, pursuant to General Municipal Law §50-h, has not been noticed in connection with this matter.

32. That more than 30 days have passed since the filing of the Notice of Claim and defendant, CITY has failed to adjust the claim.

33. This action is timely filed pursuant to the applicable Executive Orders signed by Governor Cuomo that tolled the statute of limitations due to the COVID-19 pandemic.

34. Plaintiff has complied with all conditions precedent to maintaining the instant action.

35. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

36. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

37. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

38. All of the aforementioned acts deprived plaintiff MAXIMO RODRIGUEZ of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

39. The acts complained of were carried out by the aforementioned individual defendant in his capacity as a police officer, with all the actual and/or apparent authority attendant thereto.

40. The acts complained of were carried out by the aforementioned individual defendant in his capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

41. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

42. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

SECOND CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

44. Defendant P.O. Doe issued legal process to unlawfully detain plaintiff MAXIMO RODRIGUEZ.

45. Defendant P.O. Doe unlawfully detained plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

46. Defendant P.O. Doe acted with intent to do harm to plaintiff MAXIMO RODRIGUEZ, without excuse or justification.

47. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, restrained, assaulted and humiliated, without probable cause and was not otherwise privileged.

48. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

THIRD CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

50. The level of force employed by defendant P.O. Doe was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

51. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, bodily injuries, facial deformities, permanent scarring, conscious pain and suffering and missed time from school, emotional distress, embarrassment and humiliation, out of pocket medical expenses and deprivation of his constitutional rights.

52. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

FOURTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO PLAINTIFF'S
MEDICAL NEEDS UNDER 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

54. Defendant P.O. Doe knew that plaintiff had sustained serious injuries as a result of his unlawful use of force.

55. Notwithstanding this fact, defendant P.O. Doe intentionally and deliberately failed to get proper medical care and treatment for plaintiff MAXIMO RODRIGUEZ.

56. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, bodily injuries, facial deformities, permanent scarring, conscious pain and suffering and missed time from school, emotional distress, embarrassment and humiliation, out of pocket medical expenses and deprivation of his constitutional rights.

57. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

58. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

59. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

60. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, a) arresting individuals regardless of probable cause; b) utilizing excessive force in making said arrests; c) falsifying evidence to cover up police misconduct; d) arresting civilian witnesses whenever dispute arises between civilians and police officers (Wu v. City of New York, 934 F.

Supp. 581 (S.D.N.Y. 1996)); and e) allowing officers to carry and use their weapons when off-duty without any proper training, instructions or guidelines.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

63. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

64. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff MAXIMO RODRIGUEZ was subjected to unlawful detention and excessive force resulting in permanent and disabling injuries.

65. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

66. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff MAXIMO RODRIGUEZ' constitutional rights

67. The acts complained of deprived plaintiff of his rights:

A. Not to be deprived of liberty without due process of law;

B. To be free from seizure not based upon probable cause and not otherwise privileged;

C. To be free from malicious abuse of process;

D. Not to have excessive force imposed upon him;

E. Not to have summary punishment imposed upon him; and

F. To receive equal protection under the law.

68. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

**SIXTH CLAIM FOR RELIEF FOR
ASSAULT**

69. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

70. Defendant P.O. Doe's aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

71. As a result of defendant P.O. Doe's conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

72. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

**SEVENTH CLAIM FOR RELIEF FOR
BATTERY**

73. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

74. Defendant P.O. Doe touched plaintiff MAXIMO RODRIGUEZ in a harmful and offensive manner.

75. Defendant P.O. Doe did so without privilege or consent from plaintiff.

76. As a result of the foregoing, plaintiff suffered severe blunt injuries to his face causing him to be hospitalized and subsequently undergo surgery.

77. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

**EIGHTH CLAIM FOR RELIEF FOR
FALSE IMPRISONMENT**

78. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

79. As a result of the foregoing, plaintiff MAXIMO RODRIGUEZ was falsely imprisoned, his liberty was restricted for an extended period of time, was put in fear for his safety, was humiliated and subjected to physical restraints.

80. Plaintiff was conscious of said confinement and did not consent to same.

81. The confinement of plaintiff was without probable cause and was not otherwise privileged.

82. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

83. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

**NINTH CLAIM FOR RELIEF FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

84. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

85. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

86. The aforementioned conduct was committed by defendant P.O. Doe while acting within the scope of his employment by defendant THE CITY OF NEW YORK.

87. The aforementioned conduct was committed by defendant P.O. Doe while acting in furtherance of his employment by defendant THE CITY OF NEW YORK.

88. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

89. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

90. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

**TENTH CLAIM FOR RELIEF FOR
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

91. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

92. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendant P.O. Doe.

93. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendant P.O. Doe.

94. Defendant CITY OF NEW YORK knew that defendant P.O. Doe had a propensity for violence and excessive use of force, and would pose an unreasonable risk of harm to all citizens whom he might encounter including plaintiff herein.

95. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

96. As result of the foregoing, plaintiff MAXIMO RODRIGUEZ has been damaged in the amount of FIVE MILLION DOLLARS (\$5,000,000.00) an also like you always feel like with d is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

WHEREFORE, plaintiff MAXIMO RODRIGUEZ requests judgement against the defendants as follows:

- A. Compensatory damages in the amount of five million dollars (\$5,000,000);
- B. Punitive damages in the amount of ten million dollars (\$10,000,000);
- C. An award of reasonable attorney's fees pursuant to 42 U.S.C. § 1988, as well as costs and disbursements; and
- D. Any further relief as the Court may find just and proper.

Dated: New York, New York
June 23, 2021

Respectfully submitted,

JON L. NORINSBERG, ESQ., PLLC

By:

A handwritten signature in blue ink, appearing to read "Jon L. Norinsberg", is written over a horizontal line.

Jon L. Norinsberg, Esq.

Diego O. Barros, Esq.

Attorneys for Plaintiff

110 East 59th Street, Suite 3200

New York, NY 10022

Tel.: (212) 791-5396

Fax: (212) 656-1889

EXHIBIT A

ED to Hosp-Admission
(Discharged) on
12/10/2019

Patient Identifiers

CSN: 3021611978
EPIC Number: E3781240
STAR Account Number: 1934400094

Patient Information

Patient Name	HAR	MRN	Identity ID	Sex	DOB
Rodriguez, Maximo	131934400422	0002375497	E3781240	Male	10/22/2001

Location

Name	Address	Phone
ST FRANCIS HOSPITAL	100 Pt Washington Blvd Roslyn NY 11576	516-516-562-6000

Transcription

Type	ID	Date and Time	Dictating Provider
Operative Report	FD332698	12/14/2019 2:30 PM	Sasson, Homayoun, MD

Electronically Signed by Sasson, Homayoun, MD on 12/20/19 at 1645

Rodriguez, Maximo
DOB: 10/22/2001
AGE: 18
MR #: 0002375497
ACCT #: 1934400094
PT. TYPE: FIP
D/C DATE: 12/12/2019

DATE: 12/11/2019

PREOPERATIVE DIAGNOSIS: STATUS POST SEVERE BLUNT INJURY TO THE FACE WITH MULTIPLE INJURIES INCLUDING A COMMUNUTED DISPLACED FRACTURE OF THE LEFT ZYGOMA AND ORBITAL RIM AND ORBITAL FLOOR AND MAXILLARY SINUS AND MAXILLARY BONE AS WELL AS A NASAL FRACTURE

POSTOPERATIVE DIAGNOSIS: STATUS POST SEVERE BLUNT INJURY TO THE FACE WITH MULTIPLE INJURIES INCLUDING A COMMUNUTED DISPLACED FRACTURE OF THE LEFT ZYGOMA AND ORBITAL RIM AND ORBITAL FLOOR AND MAXILLARY SINUS AND MAXILLARY BONE AS WELL AS A NASAL FRACTURE

TITLE OF OPERATION:

1. OPEN REDUCTION AND INTERNAL FIXATION OF LEFT ZYGOMATIC FRACTURES INCLUDING LEFT ORBITAL RIM BY MULTIPLE APPROACHES INCLUDING A GILLIES APPROACH WITH BONE GRAFTING
2. OPEN REDUCTION AND REPAIR OF THE LEFT ORBITAL FLOOR FRACTURE AND WITH PLACEMENT OF A MESH
3. NEUROLYSIS OF LEFT INFRAORBITAL NERVE
4. OPEN REDUCTION AND INTERNAL RIGID FIXATION OF THE LEFT MAXILLARY SINUS AND MAXILLARY BONE
5. REDUCTION OF THE NASAL FRACTURE BY MANIPULATION AND PLACEMENT OF A SPLINT
6. LEFT LATERAL ORBITAL CANTHOTOMY AND REPAIR OF THE CANTHOTOMY INCISION

SURGEON: HOMAYOUN SASSON, MD
ASSISTANTS: Donna Falk-Carter, PA
ANESTHESIOLOGIST:
ANESTHESIA: General anesthesia

ESTIMATED BLOOD LOSS: 15 cc
COMPLICATIONS: None

INDICATIONS AND FINDINGS: This patient is now brought to the Operating Room for definitive surgical treatment of his multiple severe facial and nasal fractures. On CT scan examination as well as clinically, there was suspicion and/or concern regarding

possibility of facial cellulitis for which he received IV antibiotic treatment since yesterday. There appears to be no sign and symptoms of cellulitis although the left facial swelling and periorbital ecchymosis as well as deformities are still present

and better evident. There is moderately-to-markedly decreased prominence of the left zygomatic bone as compared to that of the unaffected right side. The nose is deviated towards the right side. The CT scan examination revealed the fracture of the

left nasal bone alongside its junction with the left orbital floor. There is a step-off deformity palpable at the medial aspect of the left infraorbital rim in addition to markedly flattened and decreased prominence of the left zygomatic prominence.

The CT scan examination confirmed these fractures in addition to the left orbital floor with probable entrapment of the soft tissue of the left globe within the left orbital floor in addition to his numbness and tingling of the left infraorbital and

cheek and nasal and upper lip and teeth regions indicating the crushing injury and neurapraxia of the left infraorbital nerve, in addition to CT scan examination demonstration of the left maxillary sinus and maxillary regions.

Options and alternatives and risks and complications have been discussed again at length with the patient and his parents today. Implications of these injuries have been discussed. Every effort will be made to normalize the face and make a symmetrical face although they understand risks of infection, bleeding, eye injury or blindness, permanency and/or long-term numbness of the infraorbital nerve region and territory, risk of asymmetry, nonunion or malunion, future recurrences, bleeding as well as other reasonable complications have been thoroughly discussed. They understood and wished to proceed.

PROCEDURE: The details are as follows. Under adequate lighting and sterile conditions and with the patient in supine position and adequate general anesthesia, the areas of the face and globes were sterilely prepped and draped entirely.

Bacitracin ophthalmic ointment was placed in both the globes for protection in addition to placement of the corneal-scleral protector on to the left globe for further protection. One percent lidocaine with 1:100,000 epinephrine was infiltrated surrounding the left periorbital and left cheek and gingival buccal sulcus region for better hemostasis.

A #15 blade was used. An incision was made along the left lateral canthal ligament and this incision was continued along the lower eyelid conjunctiva in the form of a transconjunctival incision in order to avoid external scarring. The patient and his parents understood permanency some scars that would be necessary particularly externally. Care was taken to avoid injuring or extending of the transconjunctival incision into the region of the medial punctum and lacrimal duct, however, at all times.

This incision was deepened using electrocautery through the underlying subconjunctival as well as muscular region down to the underlying infraorbital rim.

A key periosteal elevator was used and periosteum was stripped off of the left infraorbital rim and immediately a markedly depressed fracture was noted with the lateral segment of the left infraorbital rim depressed and displaced by approximately 0.7 cm

anteriorly which was itself connected to the left nasal bone. Thus, the lateral segment was significantly more anterior to the medial segment of the left infraorbital rim. In addition to this step-off, there was a large and at least 4 mm gap between

the lateral and medial segments of the infraorbital rim fracture with large areas of comminuted and detached portions of the bone free floating in this region. This bony fracture fragment was used as a bone graft in order to fill the defect at the termination of the procedure and following reduction of the infraorbital rim and prior to placement of the internal rigid fixation apparatus. This was a severely buckled and medially displaced fracture which could not be reduced by manipulation despite using multiple maneuvers including bone hook placement.

The decision was made to proceed with a Gillies approach. A 0.6 cm incision was made in the left temporoparietal scalp region which was deepened down to the underlying periosteum using small sharp curved scissors. Via this region, a Gillies retractor was inserted and introduced deep medial and under the left zygomatic arch and zygoma. With exhaustive efforts, finally the left zygoma and zygomatic arch and the infraorbital rim bone were able to be distracted and in addition to using a bone hook in the region of the left infraorbital rim fracture, finally and after exhaustive efforts the zygoma was able to be reduced and made symmetrical with that of the right side including its symmetrical prominence restored. There was still a significant gap between the medial and lateral aspects of the left infraorbital rim fracture which was ameliorated with bone grafting of the segment of the bone which was free floating, but could not be itself rigidly fixated because of its nature and size.

Furthermore, the step-off still persisted between the medial and lateral aspects of the left infraorbital rim bone which was better improved by placing a Goldman septal elevator as well as other instrumentations into both nostrils and by reducing the nasal fracture in such way that allowed better approximation of the medial segment of the left infraorbital rim bone to the lateral aspect in addition to reducing the nasal fracture by this technique. The nasal fracture and the left nasal bone which was connected to the medial aspect of the left infraorbital rim bone were thus reduced from the right-sided deviation to the midline positioning using this technique.

Using a soft malleable and while taking care to protect the integrity of the globe, gentle upward globe retraction was performed and a large area of the deeply entrapped and herniated soft tissue of the left globe were identified within the large gaping

fracture of the medial aspect of the left orbital floor. This area of herniation was released. There was significant loss of the left orbital floor bone into the maxillary sinus. The entire blood of the left maxillary sinus was aspirated as had been

seen on a preoperative CT scan examination in order to minimize the risk of future sinusitis. The large gaping fracture site of the left orbital floor could not be approximated by using the local bone. Thus, the decision was made to place a mesh.

A 1.0 mm Medpor mesh from a Stryker unit was tailored to the site and was placed on to the left orbital floor and the left globe was allowed to lie on it thus preventing reherniation. At all times, care was taken to avoid excessive dissection into the

area of the left optic nerve. A small incision was made alongside the inferior aspect of the left eyebrow and upper eyelid region laterally. This was deepened down through the deep subcutaneous as well as muscle tissues on to the left zygomaticofrontal suture line which appeared to be at this time and following reduction of all the other fractures, a minimally displaced or nondisplaced fracture.

The left zygomaticofrontal suture line was rigidly fixated using 1.2 mm microplating system of Stryker unit and 4 mm screws on either side of the fracture. This incision was irrigated and repaired using #6-0 Vicryl suture for repairing of the periosteum as well as muscle and deep subcutaneous and dermal layers in a buried interrupted fashion followed by repairing of the overlying skin using #6-0 plain fast absorbing suture in an interrupted as well as running fashion.

The incision of the left Gillies approach scalp region was repaired using #5 Vicryl as well as #5-0 plain fast absorbing sutures for repairing of the underlying deep subcutaneous and dermal layers as well as overlying skin respectively and in an interrupted as well as running fashion with excellent hemostasis. A 1.2 mm microplating system was again used for rigidly fixating the left infraorbital rim across the fracture site including the bone graft site on to the portion of the nasal bone using 4 mm microplating system with excellent rigid fixation.

The left lateral canthotomy incision was repaired and the canthal ligament was reconstituted using #5-0 Vicryl suture in an interrupted buried fashion followed by repairing of the conjunctiva using #6-0 Vicryl suture followed by repairing of the

periosteum as well as muscle tissue overlying the left infraorbital rim plate using #6-0 Vicryl suture in addition to repairing of the conjunctiva using #6-0 plain fast absorbing suture in an interrupted buried fashion with the knots away from the cornea in order to avoid corneal abrasion. At the time of the left orbital floor dissection, however, the infraorbital nerve was dissected free from the fracture site and neurolysis of the nerve was performed and was laid free as it was severely crushed and contused within the fracture site.

Lastly, attention was directed to the left maxillary and maxillary sinus fractures. A left upper gingival buccal sulcus incision was made using electrocautery while taking care to protect the integrity of the nerves as well as the parotid duct. This incision was deepened through the submucosal region down to the underlying periosteum. Markedly comminuted displaced fractures of not only the maxillary sinus, but also the maxilla itself were noted. This was openly reduced and a 1.7 mm microplating plating system was used from the Stryker unit with 5-mm screws for its rigid fixation. Excellent repair was obtained. The left upper gingival buccal sulcus incision was irrigated and after adequate hemostasis using electrocautery, it was repaired using #4-0 Vicryl suture in a running interlocking fashion.

Excellent repair was obtained with good hemostasis. All external wounds were cleansed and dressed in a sterile fashion at the termination of the procedure. He tolerated the procedure well. Sponge and needle counts were correct. At the termination of the procedure, the left corneal protector was removed and both globes were irrigated using copious amounts of balanced salt solution. The left globe region was examined immediately postoperatively which was grossly within normal limits. He tolerated the procedure well. Sponge and needle counts were correct. He was brought to the Recovery Room in stable condition.

Homayoun Sasson, MD
D: 12/14/2019 14:30:07
T: 12/15/2019 05:29:38
JOB: D332698

Electronically Signed by Sasson, Hodayoun, MD on 12/20/19 at 1645
Display only: Transcription (FD332698) on 12/14/2019 2:30 PM by Sasson, Hodayoun, MD



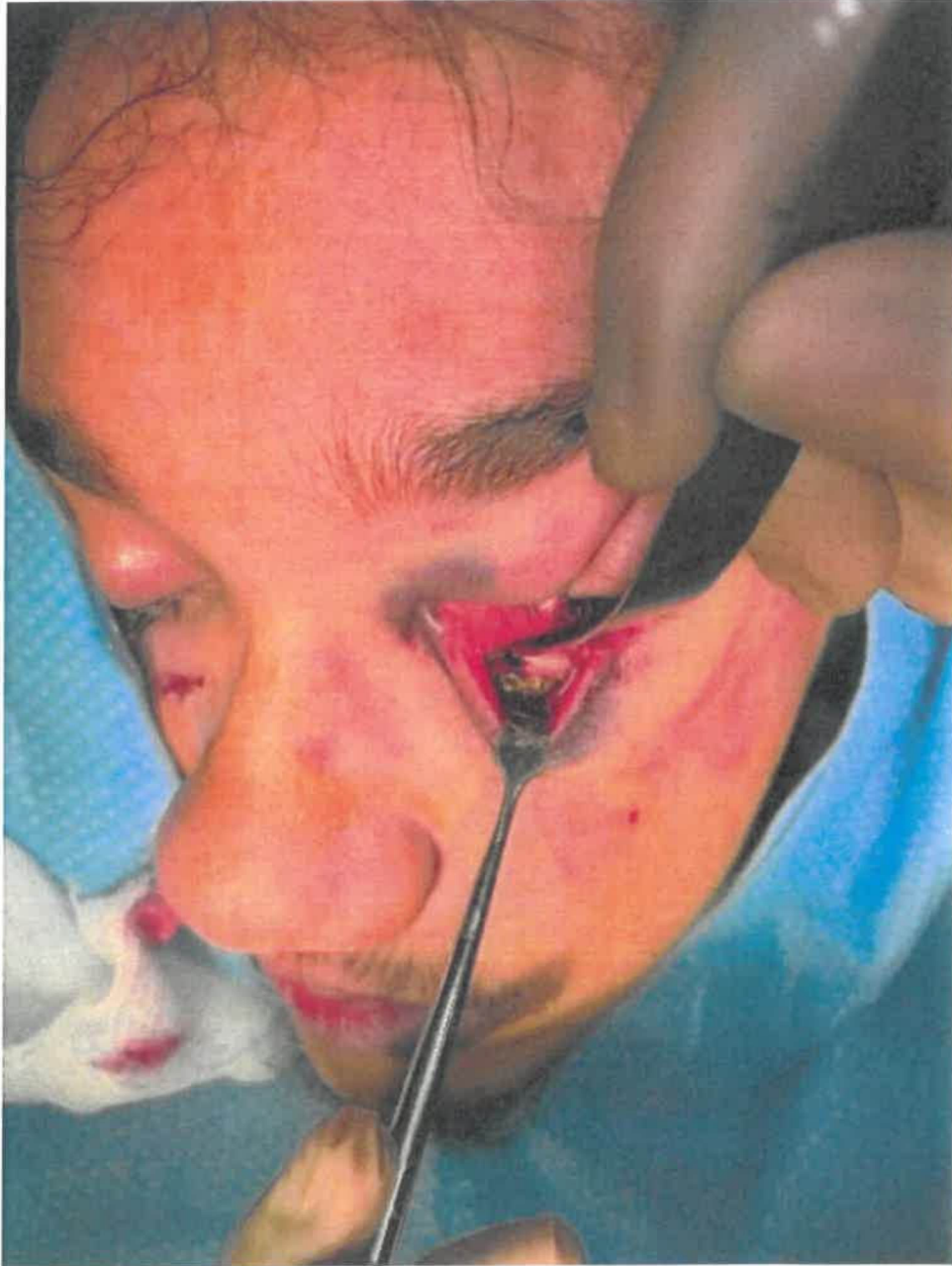






EXHIBIT B

 New York City Police Department OmniForm System - Complaints							
Report Cmd: 104	Jurisdiction: N.Y. POLICE DEPT	ICAD#:	Record Status: Final, No Arrests	Complaint #: 2019-104-008217	No Other Legacy Blue Versions	No Other Complaint Revisions	
Occurrence Location: FRONT OF 1627 SUMMERFIELD AVENUE Name Of Premise: Premises Type: STREET Location Within Premise: Visible By Patrol?: NO			NYC Parks Dept. Property Did this offense occur on NYC Parks Dept. NO Property? Command: NYC Parks Dept. Property Name:		Precinct: 104 Sector: B Beat: Post:		
Occurrence From: 2019-12-08 20:54 SUNDAY Occurrence thru: Reported: 2019-12-26 11:50 Complaint Received: WALK-IN					Aided # 000002366 Accident # O.C.C.B. #		
Classification: ASSAULT Attempted/Completed: COMPLETED Most Serious Offense Is: MISDEMEANOR PD Code: 101 ASSAULT 3 PL Section: 12000 Keycode: 344 ASSAULT 3 & RELATED OFFENSES				Case Status: OPEN Unit Referred To: P.D.U. Clearance Code: Log/Case #: 0 Clearance Arrest Id: Clearance AO Cmd: File #: 38 Prints Requested? NO			
Is This Related To Stop And Frisk Report NO		SQF Number: 0000-000-00000		Was The Victim's Personal Information Taken Or Possessed? NO		Was The Victim's Personal Information Used To Commit A Crime? NO	
Gang Related? NO		Detective Borough Wheel Log #:		Name Of Gang:		Child Abuse Suspected? NO	
DIR Required? NO		Child In Common? NO		Intimate Relationship? NO		Officer Body Worn Camera: NO	
If Burglary: Forced Entry? Structure: Entry Method: Entry Location:		Alarm: Bypassed? Comp Responded?: Company Name/Phone: Crime Prevention Survey Requested?: Complaint/Reporter Present?:		If Arson: Structure: Occupied?: Damage by:		Taxi Robbery: Partition Present: Amber Stress Light Activated: Method of Conveyance: Location of Pickup:	
Supervisor On Scene - Rank / Name / Command :			Canvas Conducted: NO		Translator(If used):		
NARRATIVE: @ TPO CV STATES UNKNOWN MALE STATED TO CV "I'M A OFFICER, YOU'RE UNDER ARREST" WHILE TOUCHING HIS WAISTBAND WHICH CV STATED IT APPEARS TO BE A GUN. CV FURTHER STATES UNKNOWN MALE GRAB HIM BY THE HOOD OF HIS SHIRT AND PUNCHED HIM IN THE FACE & KICKED CV. CV FURTHER STATES WENT TO LIJ AND ST FRANCIS HOSPITAL TO TREAT HIS INJURIES ON 12/9/19. DET CLARK IAB NOTIFIED LOG # 2019-45678.							
No NYC TRANSIT Data for Complaint # 2019-104-008217							

2/24/2020

Total Victims: 1	Total Witnesses: 0	Total Reporters: 1	Total Wanted: 1
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VICTIM: # 1 of 1		Name: RODRIGUEZ,MAXIMO	Complaint#: 2019-104-008217												
Nick/AKA/Maiden: UMOS: NO Sex/Type: MALE Race: HISPANIC BLACK Age: 18 Date Of Birth: 10/22/2001 Disabled? NO Is this person not Proficient in English?: NO If Yes, Indicate Language: N.Y.C.H.A Resident? NO Is Victim fearful for their safety / life? YES Escalating violence / abuse by suspect? NO Were prior DIR's prepared for CV? NO		Gang/Crew Affiliation: NO Name: Identifiers: Will View Photo: YES Will Prosecute: YES Notified Of Crime Victim Comp. Law: NO													
<table border="1"> <tr> <th>LOCATION</th> <th>ADDRESS</th> <th>CITY</th> <th>STATE/COUNTRY</th> <th>ZIP</th> <th>APT/ROOM</th> </tr> <tr> <td>HOME-PERMANENT</td> <td>876 WOODWARD AVENUE</td> <td>QUEENS</td> <td>NEW YORK</td> <td>1135</td> <td></td> </tr> </table>				LOCATION	ADDRESS	CITY	STATE/COUNTRY	ZIP	APT/ROOM	HOME-PERMANENT	876 WOODWARD AVENUE	QUEENS	NEW YORK	1135	
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Action against Victim:		Actions Of Victim Prior To Incident: WITH HIS FRIEND CHRISTINA													
Victim Of Similar Incident: NO		If Yes, When And Where													

REPORTER: # 1 of 1		Name: DEGRIJZE,JACQLINI	Complaint #: 2019-104-008217												
Nick/AKA/Maiden: Sex/Type: FEMALE Race: WHITE HISPANIC Age: 042 Date Of Birth: 08/21/1977 Is this person not Proficient in English?: NO If Yes, Indicate Language:		Gang/Crew Affiliation: NO Name: Identifiers: Relationship To Victim: MOTHER													
<table border="1"> <tr> <th>Location</th> <th>Address</th> <th>City</th> <th>State/Country</th> <th>Zip</th> <th>Apt/Room</th> </tr> <tr> <td>HOME-PERMANENT</td> <td>876 WOODWARD AVENUE</td> <td>QUEENS</td> <td>NEW YORK</td> <td>11385</td> <td></td> </tr> </table>				Location	Address	City	State/Country	Zip	Apt/Room	HOME-PERMANENT	876 WOODWARD AVENUE	QUEENS	NEW YORK	11385	
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Phone #: HOME:															

WANTED: # 1 of 1		Name: UNK, UNK	Complaint#: 2019-104-008217	Arrested: NO
Nick/AKA/Maiden: Sex: MALE Race: BLACK HISPANIC Age: Date Of Birth: UNKNOWN U.S. Citizen: Place Of Birth: Is this person not Proficient in English?: NO If Yes, Indicate Language: Accent: NO		Height: 6FT0IN Weight: 260 Eye Color: Hair Color: Hair Length: BALD Hair Style: BALD Skin Tone: DARK Complexion: UNKNOWN S.S. #: 0		Order Of Protection: NO Issuing Court: Docket #: Expiration Date: Order of Protection Violated? Does Suspect abuse Drugs / Alcohol? NO Suspect threatened / attempted suicide? NO Is the suspect Parole / Probation? NO Relation to Victim: STRANGER Living together: NO Can be Identified: YES

2/24/2020

		Gang/Crew Affiliation: Name: Identifiers:																									
LOCATION ADDRESS CITY STATE/COUNTRY ZIP APT/ROOM HOW LONG? RES. PCT																											
Phone #: HOME: -- CELL: -- BUSINESS: -- BEEPER: -- E-MAIL:																											
N.Y.C.H.A. Resident: N.Y.C. Housing Employee: On Duty: Development: N.Y.C. Transit Employee:																											
Physical Force: USED																											
Weapons:																											
<table style="width: 100%; border: none;"> <tr> <td style="width: 30%;">Gun:</td> <td style="width: 30%;">Make:</td> <td style="width: 30%;">Recovered:</td> <td style="width: 10%;"></td> </tr> <tr> <td>Weapon Used/Possessed: NONE</td> <td>Caliber:</td> <td>Serial Number Defaced:</td> <td></td> </tr> <tr> <td>Non-Firearm Weapon:</td> <td>Color:</td> <td>Serial Number:</td> <td></td> </tr> <tr> <td>Other Weapon Description:</td> <td>Type:</td> <td></td> <td></td> </tr> <tr> <td colspan="4">Other/Gun Specify:</td> </tr> <tr> <td colspan="4">Discharged: NO</td> </tr> </table>				Gun:	Make:	Recovered:		Weapon Used/Possessed: NONE	Caliber:	Serial Number Defaced:		Non-Firearm Weapon:	Color:	Serial Number:		Other Weapon Description:	Type:			Other/Gun Specify:				Discharged: NO			
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<table style="width: 100%; border: none;"> <tr> <td style="width: 50%;">CRIME DATA</td> <td style="width: 50%;">DETAILS</td> </tr> <tr> <td>STATEMENTS MADE</td> <td>"I'M A OFFICER, YOU'RE UNDER ARREST"</td> </tr> <tr> <td>MODUS OPERANDI</td> <td>UNKNOWN</td> </tr> <tr> <td>ACTIONS TOWARD VICTIM</td> <td>UNK</td> </tr> <tr> <td>CLOTHING</td> <td>OUTERWEAR -SWEAT SHIRT OR JOGGING JACKET -WHITE</td> </tr> <tr> <td>CLOTHING</td> <td>ACCESSORIES -JEANS -BLUE</td> </tr> <tr> <td>CLOTHING</td> <td>HEADGEAR -UNK -UNKNOWN COLOR</td> </tr> <tr> <td>CLOTHING</td> <td>FOOTWEAR -UNK -UNKNOWN COLOR</td> </tr> <tr> <td>CHARACTERISTICS</td> <td>BEARDED</td> </tr> <tr> <td>BODY MARKS</td> <td>-UNKNOWN</td> </tr> <tr> <td>IMPERSONATION</td> <td>UNKNOWN</td> </tr> </table>				CRIME DATA	DETAILS	STATEMENTS MADE	"I'M A OFFICER, YOU'RE UNDER ARREST"	MODUS OPERANDI	UNKNOWN	ACTIONS TOWARD VICTIM	UNK	CLOTHING	OUTERWEAR -SWEAT SHIRT OR JOGGING JACKET -WHITE	CLOTHING	ACCESSORIES -JEANS -BLUE	CLOTHING	HEADGEAR -UNK -UNKNOWN COLOR	CLOTHING	FOOTWEAR -UNK -UNKNOWN COLOR	CHARACTERISTICS	BEARDED	BODY MARKS	-UNKNOWN	IMPERSONATION	UNKNOWN		
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NOTIFICATIONS / ADDITIONAL COPIES:		Complaint # 2019-104-008217																									
Notifications to: <table style="width: 100%; border: none;"> <tr> <td style="width: 15%;">Rank/Title</td> <td style="width: 15%;">Name</td> <td style="width: 15%;">Unit/Agency</td> <td style="width: 15%;">Log #</td> </tr> <tr> <td>DET</td> <td>CLARK</td> <td>IAB</td> <td>2019-45678</td> </tr> <tr> <td>SGT</td> <td>GALVIN</td> <td>104 DESK</td> <td></td> </tr> </table>		Rank/Title	Name	Unit/Agency	Log #	DET	CLARK	IAB	2019-45678	SGT	GALVIN	104 DESK															
Rank/Title	Name	Unit/Agency	Log #																								
DET	CLARK	IAB	2019-45678																								
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Reporting/Investigating M.O.S. Name: PAA DUARTE CINTHIA	Tax #: 363769	Command: 104 PCT	Rep.Agency: NYPD																								
Supervisor Approving Name: SGT GALVIN JAMES	Tax #: 925328	Command: 104 PCT	Rep.Agency: NYPD																								
Complaint Report Entered By: PAA DUARTE	Tax #: 363769	Command: 104 PCT	Rep.Agency: NYPD																								
Signoff Supervisor Name: SGT GALVIN	Tax #: 925328	Command: 104 PCT	Rep.Agency: NYPD																								

2/24/2020

END OF COMPLAINT REPORT
2019-104-008217

Print this Report.

2/24/2020

EXHIBIT C

In the Matter of the Claim of

MAXIMO RODRIGUEZ

against

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and
POLICE OFFICER JOHN DOE

TO: CITY OF NEW YORK COMPTROLLER
ONE CENTRE STREET
NEW YORK, NY 10007

PLEASE TAKE NOTICE that the undersigned claimant(s) hereby make(s) claim and demand against the City of New York, as follows

1. The name and post-office address of each claimant is:

2020

Claimant:

Maximo Rodriguez
2 Western Lane
Wantagh, New York 11793

2. The nature of the claim: The nature of the claim is for severe and permanent personal injuries, conscious pain and suffering, medical permanency, psychological and emotional trauma, shock, fright, anxiety, and medical expenses, incurred by Maximo Rodriguez, and all other damages allowed by statute and case law as a result of and arising out of the negligence, recklessness, assault, and battery, the intentional use of excessive force, invasion of privacy, abuse of process, and violation of both state and federal civil rights, as well as the violation of state and federal ordinances, statutes, codes, and rule, including, but not limited to, negligent hiring, negligent training, negligent supervision and negligent retention of and by the CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, departments, agencies, and those acting under their directions.

3. **The time when, the place where and the manner in which the claim arose:** On or about December 8, 2019, at approximately 08:50 p.m., at and outside the premises of 1627 Summerfield Street, Ridgewood, New York 11385, when the claimant, Maximo Rodriguez was thrown, pushed, knocked, forced to the ground, violently, brutally and viciously battered by an individual who identified himself as a police officer, who, upon information and belief, was an agent, servant, and/or employee of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT. The aforesaid assault was allowed and permitted to take place due to the negligence, recklessness, assault and battery, intentional use of excessive force, invasion of privacy, abuse of process, negligent training, negligent supervision, and negligent retention of and by the CITY OF NEW YORK, and the NEW YORK CITY POLICE DEPARTMENT, their agents, servants, and/or employees, departments, agencies and those acting under their directions (VIDEO OF INCIDENT IS CONTAINED ON CD PROVIDED HERewith).

4. **The items of damage or injuries claimed:** The claimant, Maximo Rodriguez, sustained multiple personal injuries, including severe blunt injuries to the face including a comminuted displaced fracture of the left zygoma, orbital rim, orbital floor, maxillary sinus, maxillary bone and nasal fracture which

necessitated open reduction and internal fixation of left zygomatic fractures including left orbital rim, open reduction and repair of the left orbital floor and placement of mesh, neurolysis of left infraorbital nerve, open reduction and internal rigid fixation of the left maxillary sinus and maxillary bone, reduction of the nasal fracture by manipulation and placement of a splint, left lateral orbital canthotomy and repair of canthotomy incision, facial deformities, permanent scarring (PHOTOS AND OPERATIVE REPORT ATTACHED) and psychological injuries, conscious pain and suffering and missed time from school. Claims are being made for personal injuries, loss of freedom, loss of quality and/or enjoyment of life, out of pocket expenses, medical expenses incurred to date and further to be incurred in the future and all other damages to which claimant is entitled to by case law and statute.

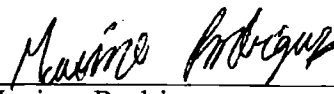
Said claims and demands are hereby presented for adjustment and payment. You are hereby notified that unless they are adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action in these claims. A claim is made for personal injuries in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS on behalf of claimant Maximo Rodriguez.

VERIFICATION

State of New York, County of New York) ss.:

Maximo Rodriguez, being duly sworn, deposes and says:

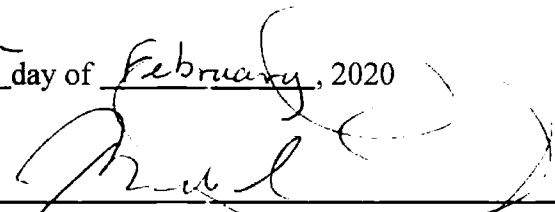
I am the claimant and I reside at 2 Western Lane, Wantagh, NY 11793; that he has read the foregoing Notice of Claim and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes it to be true.



Maximo Rodriguez

Sworn to before me, this

26th day of February, 2020



Notary Public

BRENDA I. AGOSTINI
Notary Public, State of New York
#03-01AG5025761, Qual. Bronx Co.
Commission Expires April 4, 2022

 New York City Police Department OmniForm System - Complaints							
Report Cmd: 104	Jurisdiction: N.Y. POLICE DEPT	ICAD#:	Record Status: Final, No Arrests	Complaint #: 2019-104-008217	No Other Legacy Blue Versions	No Other Complaint Revisions	
Occurrence Location: FRONT OF 1627 SUMMERFIELD AVENUE Name Of Premise: Premises Type: STREET Location Within Premise: Visible By Patrol?: NO			NYC Parks Dept. Property Did this offense occur on NYC Parks Dept. NO Property? Command: NYC Parks Dept. Property Name:		Precinct: 104 Sector: B Beat: Post:		
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2/24/2020

Total Victims: 1	Total Witnesses: 0	Total Reporters: 1	Total Wanted: 1
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VICTIM: # 1 of 1	Name: RODRIGUEZ,MAXIMO	Complaint#: 2019-104-008217												
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WANTED: # 1 of 1	Name: UNK, UNK	Complaint#: 2019-104-008217	Arrested: NO
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Supervisor Approving Name: SGT GALVIN JAMES	Tax #: 925328	Command: 104 PCT	Rep.Agency: NYPD																												
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2/24/2020

END OF COMPLAINT REPORT
2019-104-008217

Print this Report.

2/24/2020

ED to Hosp-Admission
(Discharged) on
12/10/2019

Patient Identifiers

CSN: 3021611978
EPIC Number: E3781240
STAR Account Number: 1934400094

Patient Information

Patient Name	HAR	MRN	Identity ID	Sex	DOB
Rodriguez, Maximo	131934400422	0002375497	E3781240	Male	10/22/2001

Location

Name	Address	Phone
ST FRANCIS HOSPITAL	100 Pt Washington Blvd Roslyn NY 11576	516-516-562-6000

Transcription

Type	ID	Date and Time	Dictating Provider
Operative Report	FD332698	12/14/2019 2:30 PM	Sasson, Homayoun, MD

Electronically Signed by Sasson, Homayoun, MD on 12/20/19 at 1645

Rodriguez, Maximo
DOB: 10/22/2001
AGE: 18
MR #: 0002375497
ACCT #: 1934400094
PT. TYPE: FIP
D/C DATE: 12/12/2019

DATE: 12/11/2019

PREOPERATIVE DIAGNOSIS: STATUS POST SEVERE BLUNT INJURY TO THE FACE WITH MULTIPLE INJURIES INCLUDING A COMMINUTED DISPLACED FRACTURE OF THE LEFT ZYGOMA AND ORBITAL RIM AND ORBITAL FLOOR AND MAXILLARY SINUS AND MAXILLARY BONE AS WELL AS A NASAL FRACTURE

POSTOPERATIVE DIAGNOSIS: STATUS POST SEVERE BLUNT INJURY TO THE FACE WITH MULTIPLE INJURIES INCLUDING A COMMINUTED DISPLACED FRACTURE OF THE LEFT ZYGOMA AND ORBITAL RIM AND ORBITAL FLOOR AND MAXILLARY SINUS AND MAXILLARY BONE AS WELL AS A NASAL FRACTURE

TITLE OF OPERATION:

1. OPEN REDUCTION AND INTERNAL FIXATION OF LEFT ZYGOMATIC FRACTURES INCLUDING LEFT ORBITAL RIM BY MULTIPLE APPROACHES INCLUDING A GILLIES APPROACH WITH BONE GRAFTING
2. OPEN REDUCTION AND REPAIR OF THE LEFT ORBITAL FLOOR FRACTURE AND WITH PLACEMENT OF A MESH
3. NEUROLYSIS OF LEFT INFRAORBITAL NERVE
4. OPEN REDUCTION AND INTERNAL RIGID FIXATION OF THE LEFT MAXILLARY SINUS AND MAXILLARY BONE
5. REDUCTION OF THE NASAL FRACTURE BY MANIPULATION AND PLACEMENT OF A SPLINT
6. LEFT LATERAL ORBITAL CANTHOTOMY AND REPAIR OF THE CANTHOTOMY INCISION

SURGEON: HOMAYOUN SASSON, MD
ASSISTANTS: Donna Falk-Carter, PA
ANESTHESIOLOGIST:
ANESTHESIA: General anesthesia

ESTIMATED BLOOD LOSS: 15 cc
COMPLICATIONS: None

INDICATIONS AND FINDINGS: This patient is now brought to the Operating Room for definitive surgical treatment of his multiple severe facial and nasal fractures. On CT scan examination as well as clinically, there was suspicion and/or concern regarding

possibility of facial cellulitis for which he received IV antibiotic treatment since yesterday. There appears to be no sign and symptoms of cellulitis although the left facial swelling and periorbital ecchymosis as well as deformities are still present

and better evident. There is moderately-to-markedly decreased prominence of the left zygomatic bone as compared to that of the unaffected right side. The nose is deviated towards the right side. The CT scan examination revealed the fracture of the

left nasal bone alongside its junction with the left orbital floor. There is a step-off deformity palpable at the medial aspect of the left infraorbital rim in addition to markedly flattened and decreased prominence of the left zygomatic prominence.

The CT scan examination confirmed these fractures in addition to the left orbital floor with probable entrapment of the soft tissue of the left globe within the left orbital floor in addition to his numbness and tingling of the left infraorbital and

cheek and nasal and upper lip and teeth regions indicating the crushing injury and neurapraxia of the left infraorbital nerve, in addition to CT scan examination demonstration of the left maxillary sinus and maxillary regions.

Options and alternatives and risks and complications have been discussed again at length with the patient and his parents today. Implications of these injuries have been discussed. Every effort will be made to normalize the face and make a symmetrical face although they understand risks of infection, bleeding, eye injury or blindness, permanency and/or long-term numbness of the infraorbital nerve region and territory, risk of asymmetry, nonunion or malunion, future recurrences, bleeding as well as other reasonable complications have been thoroughly discussed. They understood and wished to proceed.

PROCEDURE: The details are as follows. Under adequate lighting and sterile conditions and with the patient in supine position and adequate general anesthesia, the areas of the face and globes were sterilely prepped and draped entirely.

Bacitracin ophthalmic ointment was placed in both the globes for protection in addition to placement of the corneal-scleral protector on to the left globe for further protection. One percent lidocaine with 1:100,000 epinephrine was infiltrated surrounding the left periorbital and left cheek and gingival buccal sulcus region for better hemostasis.

A #15 blade was used. An incision was made along the left lateral canthal ligament and this incision was continued along the lower eyelid conjunctiva in the form of a transconjunctival incision in order to avoid external scarring. The patient and his parents understood permanency some scars that would be necessary particularly externally. Care was taken to avoid injuring or extending of the transconjunctival incision into the region of the medial punctum and lacrimal duct, however, at all times.

This incision was deepened using electrocautery through the underlying subconjunctival as well as muscular region down to the underlying infraorbital rim.

A key periosteal elevator was used and periosteum was stripped off of the left infraorbital rim and immediately a markedly depressed fracture was noted with the lateral segment of the left infraorbital rim depressed and displaced by approximately 0.7 cm

anteriorly which was itself connected to the left nasal bone. Thus, the lateral segment was significantly more anterior to the medial segment of the left infraorbital rim. In addition to this step-off, there was a large and at least 4 mm gap between

the lateral and medial segments of the infraorbital rim fracture with large areas of comminuted and detached portions of the bone free floating in this region. This bony fracture fragment was used as a bone graft in order to fill the defect at the termination of the procedure and following reduction of the infraorbital rim and prior to placement of the internal rigid fixation apparatus. This was a severely buckled and medially displaced fracture which could not be reduced by manipulation despite using multiple maneuvers including bone hook placement.

The decision was made to proceed with a Gillies approach. A 0.6 cm incision was made in the left temporoparietal scalp region which was deepened down to the underlying periosteum using small sharp curved scissors. Via this region, a Gillies retractor was inserted and introduced deep medial and under the left zygomatic arch and zygoma. With exhaustive efforts, finally the left zygoma and zygomatic arch and the infraorbital rim bone were able to be distracted and in addition to using a bone hook in the region of the left infraorbital rim fracture, finally and after exhaustive efforts the zygoma was able to be reduced and made symmetrical with that of the right side including its symmetrical prominence restored. There was still a significant gap between the medial and lateral aspects of the left infraorbital rim fracture which was ameliorated with bone grafting of the segment of the bone which was free floating, but could not be itself rigidly fixated because of its nature and size.

Furthermore, the step-off still persisted between the medial and lateral aspects of the left infraorbital rim bone which was better improved by placing a Goldman septal elevator as well as other instrumentations into both nostrils and by reducing the nasal fracture in such way that allowed better approximation of the medial segment of the left infraorbital rim bone to the lateral aspect in addition to reducing the nasal fracture by this technique. The nasal fracture and the left nasal bone which was connected to the medial aspect of the left infraorbital rim bone were thus reduced from the right-sided deviation to the midline positioning using this technique.

Using a soft malleable and while taking care to protect the integrity of the globe, gentle upward globe retraction was performed and a large area of the deeply entrapped and herniated soft tissue of the left globe were identified within the large gaping

fracture of the medial aspect of the left orbital floor. This area of herniation was released. There was significant loss of the left orbital floor bone into the maxillary sinus. The entire blood of the left maxillary sinus was aspirated as had been

seen on a preoperative CT scan examination in order to minimize the risk of future sinusitis. The large gaping fracture site of the left orbital floor could not be approximated by using the local bone. Thus, the decision was made to place a mesh.

A 1.0 mm Medpor mesh from a Stryker unit was tailored to the site and was placed on to the left orbital floor and the left globe was allowed to lie on it thus preventing reherniation. At all times, care was taken to avoid excessive dissection into the

area of the left optic nerve. A small incision was made alongside the inferior aspect of the left eyebrow and upper eyelid region laterally. This was deepened down through the deep subcutaneous as well as muscle tissues on to the left zygomaticofrontal suture line which appeared to be at this time and following reduction of all the other fractures, a minimally displaced or nondisplaced fracture.

The left zygomaticofrontal suture line was rigidly fixated using 1.2 mm microplating system of Stryker unit and 4 mm screws on either side of the fracture. This incision was irrigated and repaired using #6-0 Vicryl suture for repairing of the periosteum as well as muscle and deep subcutaneous and dermal layers in a buried interrupted fashion followed by repairing of the overlying skin using #6-0 plain fast absorbing suture in an interrupted as well as running fashion.

The incision of the left Gillies approach scalp region was repaired using #5 Vicryl as well as #5-0 plain fast absorbing sutures for repairing of the underlying deep subcutaneous and dermal layers as well as overlying skin respectively and in an interrupted as well as running fashion with excellent hemostasis. A 1.2 mm microplating system was again used for rigidly fixating the left infraorbital rim across the fracture site including the bone graft site on to the portion of the nasal bone using 4 mm microplating system with excellent rigid fixation.

The left lateral canthotomy incision was repaired and the canthal ligament was reconstituted using #5-0 Vicryl suture in an interrupted buried fashion followed by repairing of the conjunctiva using #6-0 Vicryl suture followed by repairing of the

periosteum as well as muscle tissue overlying the left infraorbital rim plate using #6-0 Vicryl suture in addition to repairing of the conjunctiva using #6-0 plain fast absorbing suture in an interrupted buried fashion with the knots away from the cornea in order to avoid corneal abrasion. At the time of the left orbital floor dissection, however, the infraorbital nerve was dissected free from the fracture site and neurolysis of the nerve was performed and was laid free as it was severely crushed and contused within the fracture site.

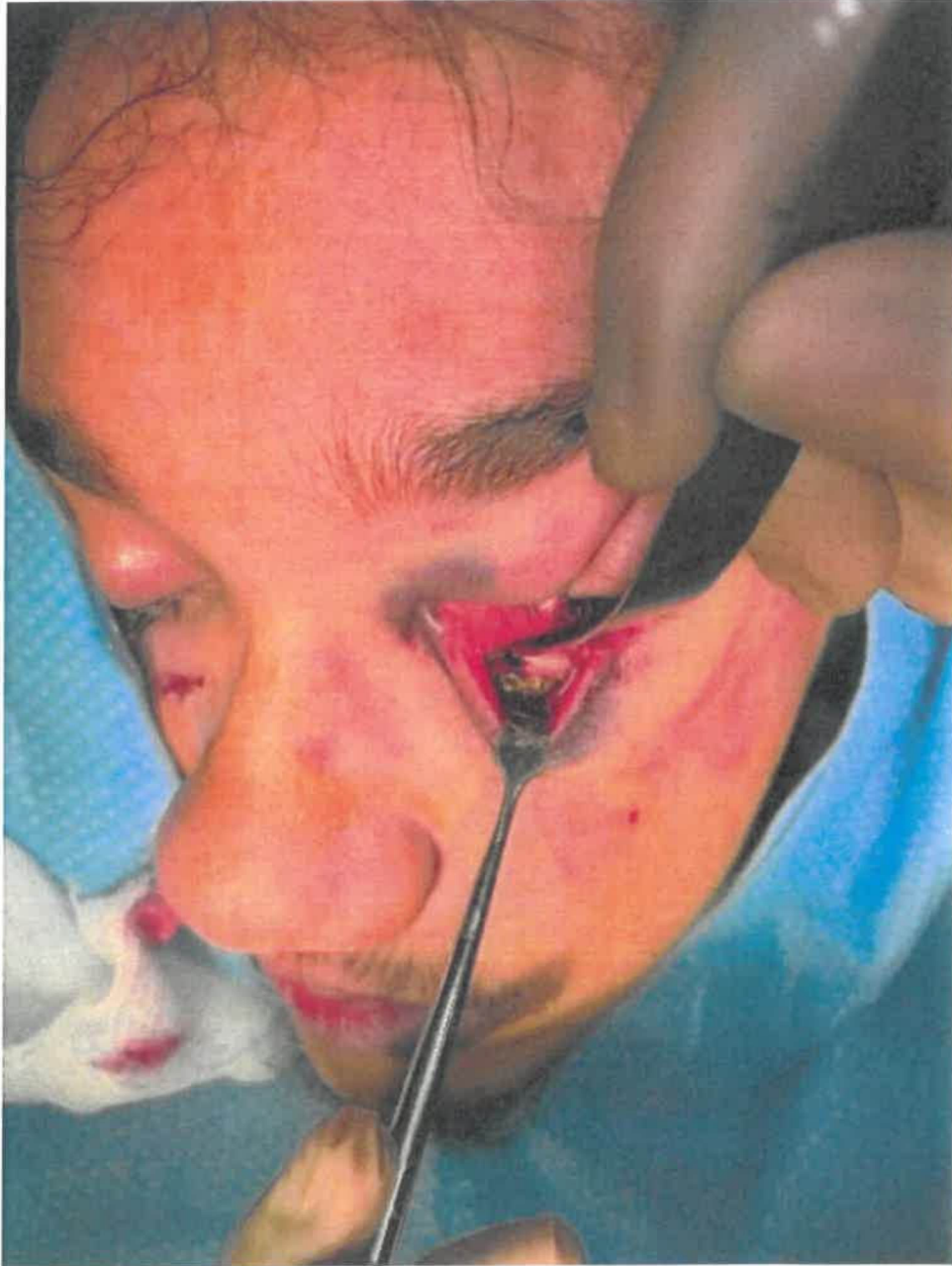
Lastly, attention was directed to the left maxillary and maxillary sinus fractures. A left upper gingival buccal sulcus incision was made using electrocautery while taking care to protect the integrity of the nerves as well as the parotid duct. This incision was deepened through the submucosal region down to the underlying periosteum. Markedly comminuted displaced fractures of not only the maxillary sinus, but also the maxilla itself were noted. This was openly reduced and a 1.7 mm microplating plating system was used from the Stryker unit with 5-mm screws for its rigid fixation. Excellent repair was obtained. The left upper gingival buccal sulcus incision was irrigated and after adequate hemostasis using electrocautery, it was repaired using #4-0 Vicryl suture in a running interlocking fashion.

Excellent repair was obtained with good hemostasis. All external wounds were cleansed and dressed in a sterile fashion at the termination of the procedure. He tolerated the procedure well. Sponge and needle counts were correct. At the termination of the procedure, the left corneal protector was removed and both globes were irrigated using copious amounts of balanced salt solution. The left globe region was examined immediately postoperatively which was grossly within normal limits. He tolerated the procedure well. Sponge and needle counts were correct. He was brought to the Recovery Room in stable condition.

Homayoun Sasson, MD
D: 12/14/2019 14:30:07
T: 12/15/2019 05:29:38
JOB: D332698

Electronically Signed by Sasson, Hodayoun, MD on 12/20/19 at 1645
Display only: Transcription (FD332698) on 12/14/2019 2:30 PM by Sasson, Hodayoun, MD









In the Matter of the Claim of

SAVITRI MOSES

against

THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT

NOTICE OF CLAIM

WINGATE, RUSSOTTI, SHAPIRO & HALPERIN, LLP

Attorneys for Claimant(s)

420 Lexington Avenue

Suite 2750

New York, New York 10170

(212) 986-7353

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MAXIMO RODRIGUEZ,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, P.O. "JOHN DOE" Individually and in His Official Capacity, (the name "John Doe" being fictitious, as the true name is presently unknown),

Defendant(s).

SUMMONS & COMPLAINT

JON L. NORINSBERG, ESQ., PLLC

Attorney for Plaintiff

110 East 59th Street, Suite 3200

New York, New York 10022

Telephone (212) 791-5396